

An Act

ENROLLED HOUSE
BILL NO. 4268

By: Johns, Waldron, and
Rosecrants of the House

and

Pugh of the Senate

An Act relating to schools; creating the Teacher Effectiveness and Excellence Act; providing short title; defining terms; establishing the Growth-Based Teacher Compensation Program as a pilot program to be administered by the State Board of Education beginning in certain school year; providing eligibility criteria; directing the State Board of Education to establish selection criteria; directing certain teachers to receive certain annual performance-based compensation; providing for promulgation of rules; defining terms; establishing the National Board Certification Bonus Program; directing certain teachers to receive certain bonus for certain period of time; providing eligibility criteria; directing bonus payments to be made from certain fund; prohibiting bonus amount from being included in certain calculation; prohibiting a school district from being liable for certain payment; providing for promulgation of rules; directing the Office of Educational Quality and Accountability to contract with an independent evaluator to conduct certain evaluation and report; providing for contents of evaluation; requiring electronic submission of certain report; amending 70 O.S. 2021, Section 3-116.2, which relates to the Commission for Educational Quality and Accountability; directing the terms of certain members to be staggered upon certain date; directing terms of members to be in accordance with certain designations; amending 70 O.S. 2021, Section 3-116.5, which relates to Commission reporting requirements; directing certain report to be electronically submitted with certain frequency; allowing the Commission to use certain funds to perform its duties; amending 70 O.S. 2021, Section 6-

211, which relates to the educator supply-and-demand study; directing the Commission, rather than the State Board of Education, to conduct the study in certain cooperation; amending 70 O.S. 2021, Section 1210.531, which relates to the Oklahoma Educational Indicators Program; directing the Commission to include certain data in certain program; directing the Commission to be provided certain data within certain time period; directing the State Board of Education to ensure certain contracts include certain requirement; allowing the Commission to contract with an independent third party to receive, process, and report certain data; updating statutory references; updating statutory language; providing for noncodification; providing for codification; providing an effective date; and declaring an emergency.

SUBJECT: Schools

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

This act shall be known and may be cited as the "Teacher Effectiveness and Excellence Act".

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 6-213 of Title 70, unless there is created a duplication in numbering, reads as follows:

A. As used in this section:

1. "Eligible teacher" means a full-time certified teacher in grades four through eight teaching English language arts and mathematics;

2. "Participating school" means a public or charter elementary or middle school serving students in grades four through eight;

3. "Recognized teacher" means an eligible teacher whose students demonstrate student growth at or above an established growth threshold; and

4. "Student academic growth" means annual student progress as measured by the Oklahoma School Testing Program.

B. There is hereby established the Growth-Based Teacher Compensation Program to be administered by the State Board of Education. Beginning with the 2026-2027 school year, the pilot program shall operate for a minimum of three (3) consecutive school years.

C. To be eligible to participate in the program, a teacher shall be a full-time certified teacher in grades four through eight teaching English language arts and mathematics at a participating school. The pilot program shall consist of one thousand five hundred teachers representing approximately fifteen percent (15%) of the highest-performing teachers serving grades four through eight in eligible schools in this state. The State Board of Education shall establish criteria for the selection of recognized teachers to participate in the pilot program.

D. Recognized teachers participating in the pilot program shall receive annual performance-based compensation under the program as follows:

1. Compensation shall be based solely on measurable student academic growth. Such growth shall be calculated using a value-added model based on a rolling two-year period of statewide assessment data; provided, however, during the first year of program implementation, compensation shall be calculated using the previous and current years of academic growth data;

2. The State Department of Education shall place participating recognized teachers into three performance tiers based on their statewide student growth percentiles as determined by student growth on Oklahoma School Testing Program assessment data;

3. The percentile distribution shall be adjusted as necessary to ensure that total annual expenditures do not exceed available funding for the program;

4. Participating recognized teachers shall be identified using equivalent performance tiers which may include Tier 1 for the

ninety-fifth percentile and above, Tier 2 for the ninetieth through ninety-fourth percentiles, and Tier 3 for the eighty-fifth through eighty-ninth percentiles; and

5. Awards shall be paid from the Teacher Empowerment Revolving Fund created in Section 6-190.2 of Title 70 of the Oklahoma Statutes by the State Department of Education as supplemental compensation. The performance-based compensation shall not be included in the calculation of the teacher's salary for purposes of meeting the district or statutory minimum salary schedule or for purposes of compensating Teachers' Retirement System of Oklahoma contributions or benefits. No participating school shall be liable for payment of the performance-based compensation pursuant to this section.

E. The State Board of Education shall promulgate rules to implement the Growth-Based Teacher Compensation Program in accordance with this section.

SECTION 3. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 6-214 of Title 70, unless there is created a duplication in numbering, reads as follows:

A. As used in this section:

1. "Eligible teacher" means any certified teacher in any subject area or grade level who is employed by a public school district in this state; and

2. "National Board certification" means certification granted by the National Board for Professional Teaching Standards to a teacher who has successfully completed all requirements for initial certification or renewal, as applicable.

B. There is hereby established a National Board Certification Bonus Program for eligible teachers who hold or attain National Board certification.

C. An eligible teacher who attains, or has attained and continues to hold, National Board certification on or after the effective date of this act shall receive an annual bonus of Five Thousand Dollars (\$5,000.00) from the State Board of Education for a five-year period subject to his or her continued employment with a public school district in this state and maintenance of National Board certification.

D. To begin receiving bonus payments, an eligible teacher shall submit proof of his or her National Board certification to the State Department of Education to receive his or her first annual bonus payment which shall be paid no later than January 31 each year. Bonuses shall be paid from the Teacher Empowerment Revolving Fund created in Section 6-190.2 of Title 70 of the Oklahoma Statutes by the State Department of Education as supplemental compensation. The bonus shall not be included in the calculation of the teacher's salary for purposes of meeting the district or statutory minimum salary schedule or for purposes of compensating Teachers' Retirement System of Oklahoma contributions or benefits. No school district shall be liable for payment of bonuses pursuant to this section.

E. The State Board of Education shall promulgate rules to implement the National Board Certification Bonus Program in accordance with this section.

SECTION 4. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 6-215 of Title 70, unless there is created a duplication in numbering, reads as follows:

A. 1. The Office of Educational Quality and Accountability shall contract with an independent evaluator to conduct a rigorous evaluation and report of both:

- a. Growth-Based Teacher Compensation Program implementation fidelity pursuant to the provisions of Section 2 of this act, and
- b. the bonus effects on student achievement and teacher workforce outcomes resulting from implementation of the Growth-Based Teacher Compensation Program pursuant to Section 2 of this act and the National Board certification bonus pursuant to Section 3 of this act.

2. The evaluation created by an independent evaluator shall include:

- a. comparison groups,
- b. longitudinal student growth analysis,
- c. workforce outcomes including retention and recruitment, and

- d. the number of teachers who have received a bonus for obtaining National Board certification as provided for in Section 3 of this act.

B. 1. Beginning January 1, 2028, the State Department of Education shall electronically submit the results of the evaluation and report to:

- a. the Governor,
- b. the President Pro Tempore of the Senate, and
- c. the Speaker of the House of Representatives.

2. The evaluation shall include:

- a. the number of participating teachers and schools,
- b. growth distribution results,
- c. compensation payments,
- d. early-grade bonus distributions, and
- e. findings from the independent evaluation conducted pursuant to subsection A of this section.

SECTION 5. AMENDATORY 70 O.S. 2021, Section 3-116.2, is amended to read as follows:

Section 3-116.2. A. Effective January 1, 2013, there is hereby created the Commission for Educational Quality and Accountability. The membership of the Commission shall consist of:

1. The Secretary of Education, who shall serve as the chair of the Commission;

2. One member appointed by the Governor, with the advice and consent of the Senate, representing business and industry from an Oklahoma employer with five hundred (500) or fewer employees;

3. One member, appointed by the Governor, with the advice and consent of the Senate, who is a parent of a child enrolled in a public school in this state;

4. One member, appointed by the Governor, with the advice and consent of the Senate, who is an administrator of a public school district;

5. One member, appointed by the Governor, with the advice and consent of the Senate, who shall represent higher education teacher education programs;

6. One member, appointed by the Governor, with the advice and consent of the Senate, who shall be an active classroom teacher in kindergarten through grade six; and

7. One member, appointed by the Governor, with the advice and consent of the Senate, who shall be an active classroom teacher in grades seven through twelve.

Upon the effective date of this act, the terms of the six appointed members shall be staggered such that the terms of no more than two members end in the same year. The terms of the initial appointed members shall commence on ~~January 1, 2013~~ July 1, 2028, and shall end ~~on June 30, 2014~~ in accordance with designations by the Governor, with the Governor designating two members whose terms shall end on June 30, 2030, two members whose terms shall end on June 30, 2031, and two members whose terms shall end on June 30, 2032. Thereafter, the Governor shall appoint two members at a time, and the terms of subsequently appointed members shall commence on July 1 of each year following the election of the Governor thereafter and shall be for four (4) years. If a vacancy occurs, the vacancy shall be filled for the unexpired term in the same manner as the office was previously filled.

B. A quorum of the Commission, which shall consist of four members, shall be present in order for the Commission to transact any business. Members shall be reimbursed for travel in the performance of their official duties in accordance with the State Travel Reimbursement Act.

C. Prior to July 1, 2013, the Commission shall meet to organize and plan for the assumption of the powers and duties of the Education Oversight Board and the Oklahoma Commission for Teacher Preparation.

D. Beginning July 1, 2013, the Commission shall assume the following duties:

1. Oversee implementation of the provisions of Enrolled House Bill No. 1017 of the 1st Extraordinary Session of the 42nd Oklahoma Legislature;

2. Implementation of the provisions of the Oklahoma Teacher Preparation Act as provided for in law;

3. Make recommendations to the Governor and Legislature on methods to achieve an aligned, seamless system from preschool through postsecondary education; and

4. Set performance levels and corresponding cut scores pursuant to the Oklahoma School Testing Program Act and as provided for in Section 1210.541 of ~~Title 70 of the Oklahoma Statutes~~ this title.

E. Beginning July 1, 2013, the Commission shall govern the operation of the Office of Educational Quality and Accountability created in Section 3-117 of ~~Title 70 of the Oklahoma Statutes~~ this title.

F. 1. Beginning July 1, 2014, the Commission shall assume the following duties of the Oklahoma Commission for Teacher Preparation according to the provisions of the Oklahoma Teacher Preparation Act:

- a. approval and accreditation of teacher education programs, and
- b. assessment of candidates for licensure and certification.

2. To implement the provisions of this subsection the Commission shall:

- a. include the State Board of Education in the process,
- b. review and assess approved, accredited, and new programs of teacher education, and
- c. encourage studies and research designed to improve teacher education.

SECTION 6. AMENDATORY 70 O.S. 2021, Section 3-116.5, is amended to read as follows:

Section 3-116.5. A. On or before ~~October 31, 2021~~ November 1, 2027, and every three (3) years thereafter, the Commission for Educational Quality and Accountability shall ~~issue electronically~~ submit a report to the Speaker of the ~~Oklahoma~~ House of Representatives, the President Pro Tempore of the ~~Oklahoma State~~ Senate, and the Governor detailing factors in the public education system of the state that contribute to improvements in the:

1. Common education system, including, but not limited to, high school graduation rates and college and career assessment scores;

2. Higher education and career and technology education systems, including, but not limited to, timely graduation rates and reduced remediation rates; and

3. State workforce, including, but not limited to, career readiness and the ability for new graduates to find in-state employment.

B. If the Commission finds there is insufficient information available to fulfill any of the report objectives specified in subsection A of this section, the report shall also contain recommendations on ways to address information gaps between state entities, such as the State Department of Education, the Oklahoma Department of Career and Technology Education, and the Oklahoma State Regents for Higher Education.

C. The Commission may contract with a private consultant or consultants to assist with the development of the report.

D. The Commission may utilize any funds received including, but not limited to, any state or federal funds, grants, or private donations to assist with the development of the report or to assist the Commission with its general purposes or duties prescribed by statute.

SECTION 7. AMENDATORY 70 O.S. 2021, Section 6-211, is amended to read as follows:

Section 6-211. The Commission for Educational Quality and Accountability, in cooperation with the State Board of Education ~~in cooperation with the Commission for Educational Quality and Accountability,~~ the Oklahoma State Regents for Higher Education, and institutions of higher education, shall conduct an educator supply-and-demand study every three (3) years. The study shall identify

areas of teacher shortage and make recommendations for addressing the areas of most critical need. The ~~Board~~ Commission shall electronically submit a report outlining the findings to the Governor, the Speaker of the House of Representatives, and the President Pro Tempore of the Senate.

SECTION 8. AMENDATORY 70 O.S. 2021, Section 1210.531, is amended to read as follows:

Section 1210.531. A. The Commission for Educational Quality and Accountability shall establish an Oklahoma Educational Indicators Program. The purpose of the ~~Program~~ program shall be to develop and implement a system of measures whereby the performance of public schools and school districts is assessed and reported without undue reliance upon any single type of indicator, and whereby the public, including students and parents, may be made aware of the proper meaning and use of any tests administered under the Oklahoma School Testing Program Act, relative accomplishments of the public schools, and of progress being achieved. The Commission shall involve representatives of school teachers and ~~of~~ school administrators in the development of the ~~Program~~ program. The ~~Program~~ program shall be so designed that use of standardized definitions and measures and opportunities for coordination with national reports, including those of the National Assessment of Educational Progress, are maximized.

B. The Oklahoma Educational Indicators Program shall present information for comparisons of graduation rates, dropout rates, pupil-teacher ratios, student enrollment gain and loss rates, and test results in the contexts of socioeconomic status and the finances of school districts. Information shall be provided individually for all public school sites and school districts in a format that facilitates comparisons. As necessary data become available, comparisons shall also be provided individually for all schools and school districts on a historical basis. Reports of all tests administered pursuant to the Oklahoma School Testing Program Act shall be a part of the Oklahoma Educational Indicators Program and shall be provided for each grade and each test subject or set of competencies. Test results for students enrolled in Internet-based courses, including regularly enrolled and alternative education students, shall be disaggregated and reported. The Commission for Educational Quality and Accountability shall seek to develop and incorporate additional indicators of comparative standing and accomplishment.

C. Additionally, the Commission for Educational Quality and Accountability, with the cooperation of the State Department of Education, the Oklahoma State Regents for Higher Education, and the State Board of Career and Technology Education, shall develop procedures for obtaining and reporting data to the high schools and ~~to~~ the general public regarding the performance of each high school's graduates in ~~Oklahoma's~~ institutions of higher education in this state and in postsecondary vocational-technical education. The Commission shall include workforce outcomes of high school graduates including postsecondary enrollment, credential attainment, employment, and earnings information as such data becomes available. The Commission for Educational Quality and Accountability shall include such data in the report of the Oklahoma Educational Indicators Program.

D. By February 1 of each year the Commission for Educational Quality and Accountability shall publish:

1. A summary report to the people and the Legislature ~~of~~ ~~Oklahoma~~ of the information provided by the Oklahoma Educational Indicators Program; and

2. ~~State State-, district district-, and site-level~~ site-level reports which shall include the percentage of students who perform at the various levels on the tests required by the Oklahoma State Testing Program.

Immediately following the publication of the reports required in this subsection each year, all data gathered pursuant to the Oklahoma Educational Indicators Program shall be made available for public inspection at the Office of Educational Quality and Accountability. The confidentiality of individual student records shall be preserved as required by law.

E. In order to carry out the provisions of this section, the Commission for Educational Quality and Accountability shall be provided all data and reports necessary to develop and produce the Oklahoma Educational Indicators Program reports within thirty (30) days of the necessary data becoming available. Such data shall be provided directly to the Commission by the State Department of Education, the Oklahoma State Regents for Higher Education, the State Board of Career and Technology Education, the Office of Management and Enterprise Services, the Oklahoma Employment Security Commission, and any state contractor or assessment vendor that maintains or produces necessary data.

F. 1. The State Board of Education shall ensure that any contracts with assessment vendors include a requirement that the vendor transmit assessment results and related data files necessary for the Oklahoma Educational Indicators Program directly to the Commission for Educational Quality and Accountability at the same time such results are transmitted to the State Department of Education.

2. Data required by this subsection shall be provided to the Commission without the need for a separate data-sharing agreement with related state agencies and shall be subject to the Oklahoma Open Records Act; provided, however, that the confidentiality of individual student records shall be preserved as required by state and federal law.

3. The Commission may contract with an independent third party to receive, process, and report data submitted pursuant to this subsection and may receive and expend federal or private grant funds to carry out its duties pursuant to this section.

SECTION 9. This act shall become effective July 1, 2026.

SECTION 10. It being immediately necessary for the preservation of the public peace, health, or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the House of Representatives the 5th day of May, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 28th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____

Approved by the Governor of the State of Oklahoma this _____
day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____